BEFORE THE
STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

In the Matter of

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-E-0072

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Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

CASE 25-G-0073

May 30, 2025

Prepared Testimony of:

Pascale Jean-Gilles, Office of New York State Assemblymember MaryJane Shimsky, 92nd District

303 South Broadway, Suite 223
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Q. Please state your name and business address.

A. My name is Pascale Jean-Gilles. My business address is 303 South Broadway Suite 229, Tarrytown NY, 10951. I am presenting testimony on behalf of the Office of New York State Assemblymember MaryJane Shimsky, Assemblymember for the 92nd Assembly District (AD 92).

Q. Have you previously submitted testimony before other state regulatory commissions?

A. No, I have not.

Q. Are you providing exhibits in your testimony?

A. Yes. Exhibit (MOA Shimsky-1): Responses to a constituent feedback form "Assembly Districts 92, 93, & 95 Utility Feedback Survey" closed on May 28, 2025.
Exhibit (MOA Shimsky-2): Responses from Con Edison to MOA Shimsky's first set of interrogatories
Exhibit (MOA Shimsky-3): Responses from Con Edison to DPS Question 56
Exhibit (MOA Shimsky-4): Correspondence from Constituents regarding Con Edison bills
Exhibit (MOA Shimsky-5): Public comment rejecting rate increases in Rate Case 22-E-0064 and 22-G-0065
Exhibit (MOA Shimsky-6): Consolidated Edison's 2026-2028 Gas Operations Capital Programs/Projects

Q. Please highlight your professional experience.

A. I am the Chief of Staff and Legislative Director for Assemblymember Shimsky, and have been in this position since 2023. Prior to this role, I have worked for Senator Elijah Reichlin-Melnick and Assemblymember Ellen Jaffee.

Q. Please describe the 92nd Assembly District.

A. The 92nd assembly district includes most of the Town of Greenburgh, the entire Town of Mount Pleasant, the villages of Pleasantville, Sleepy Hollow, Tarrytown, Elmsford, Ardsley, Irvington, Dobbs Ferry, and Hastings-on-Hudson, and parts of the City of Yonkers and the Village of Briarcliff Manor.

Q. Why is a state legislator's office participation relevant to a utility rate case?

A. The office of Assemblymember Shimsky has a duty to listen to and serve our constituents. We have consistently heard from constituents regarding their high gas and electric bills and the how the rising costs have affected them. Our constituents are paying more for services, stretching household budgets to the breaking point; and they have not seen positive changes in their overall utility service.

Q. What is the purpose of your testimony?

A. The purpose of this testimony is to illustrate the effect the rate increases will have on Con Edison ratepayers, and how the current rate increase has already led to high levels of dissatisfaction and financial distress from ratepayers.

Q. Are you concerned with how will the proposed rate increase effect ratepayers?

A. Yes. The requested increase will continue to cripple many households in Westchester County. During the last rate case, in 2022, almost 400,000 Westchester and New York

City Con Edison customers were behind on their utility bills, averaging $2,146 in debt per household (From Exhibit MOA Shimsky-5). Since the last rate case, the number of customers behind on their bills by two months or more has increased to 439,101 as of January 2025, with 127,115 termination notices sent to ratepayers by Con Edison during the cold January weather.[1] Con-Ed customers are more than $1 billion in arrears, the highest amount owed by any state utility.[2] This underscores the high level of dissatisfaction my office hears from constituents when they call for assistance on their utility bills.

Assemblymember Shimsky's office recently conducted a survey along with Assemblymembers Burdick and Levenberg (from Exhibit MOA Shimsky-1). We found that the of the 200+ responses, 55% of constituents are dissatisfied with their gas delivery charges; 48% were dissatisfied with electric delivery charges, and on average 42% were dissatisfied with both gas and electric supply charges.

Q. Do you have any concerns about the increased delivery rates?

A. Yes, a major complaint of constituents is that their delivery rates vary per bill and don't match the usage per month. Many constituents have contacted the office and have stated that delivery charges are roughly 2/3 of their overall utility bill per month. It is clear that ratepayers are paying much more for delivery than they are for usage. This is echoed by constituents in our survey whose complaints generally have commented that delivery

[1]Zambito, T. (n.d.). 1.3m new yorkers are behind on electric, gas bills. what's next for them? *Recordonline.Com*. Retrieved May 30, 2025, from https://www.recordonline.com/story/news/ny-news/2025/03/12/ny-ratepayers-behind-on-utility-bills-electric-gas-con-edison-nyseg-orange-and-rockland-utility/82275811007/.

[2] Ibid.

charges are making it difficult for them to keep up with utility bills (From Exhibit MOA Shimsky-4). More fundamentally, ratepayers are concerned with the continued increases in delivery rates and are looking for relief from yet another rate increase.

And people have really been feeling the pain. For example, this year's cost-of-living increase for Social Security recipients is 2.5% -- compare that to Con Edison's requests for rate increases totaling 11.4% and 13.3%. And our office has received numerous calls from constituents alarmed at suddenly skyrocketing delivery charges. Meanwhile, Con Edison's profits have jumped to about $2 billion dollars.[3] It is no understatement that ratepayers are overwhelmed by these rising costs while Con Edison has seen record profits.

Q. Are there programs that can help homeowners reduce their monthly bills?

A. Yes, Con Edison has an Energy Affordability Program (EAP) which aims to help ratepayers address their monthly utility bills.

Q. Do we have any reason to feel that the Energy Affordability Program (EAP) is not satisfactory?

A. Yes. We asked Con Edison in our interrogatory (From Exhibit MOA Shimsky-2) to explain their methodology for determining who is eligible for the low-income program and how many Westchester residents are currently in the program. Con Edison directed us to previous cases, where they only had specified the number of enrollees per month.

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[3] *Con Edison Reports 2024 Earnings*. Con Edison Reports 2024 earnings. (2025, February 20). https://www.coned.com/en/about-us/media-center/news/2025/02-20/con-edison-reports-2024-earnings

They did not separate out Westchester residents, nor did they fully explain how they identify low-income ratepayers.

However, in Con Edison's response to DPS, we see they did provide the number of enrollees for the past three years for the entire service area (From Exhibit MOA Shimsky-3). These numbers show a significant drop off between 2023 and 2024 in the number of ratepayers enrolled in the program; this is concerning given the many concerns we have heard in Assemblymember Shimsky's office from many ratepayers suddenly needing assistance with utility bills. Our number-one constituent complaint used to be about the condition of our roads – this year, those complaints have been vastly outnumbered by complaints about escalating Con Edison rates. We understand from Con Edison's response to Interrogatory Question 12 (From Exhibit MOA Shimsky 2) that they do coordinate with State and local agencies to identify and enroll ratepayers who are eligible. Con Edison must do more to identify ratepayers who need this affordability program.

But the EAP issue is only part of the story. We are receiving complaints from customers of all socioeconomic groups. Even ratepayers who can pay their monthly Con Edison bills, are explaining that the high rate of increases is adversely affecting their overall household budgets and forcing them to cut other expenses. This is hardly surprising, since a monthly bill for a single-family home can exceed well over one thousand dollars.

Q. Are you concerned that the current incentives to continued gas use, like the 100-foot rule, increases costs for ratepayers?

A. Yes. Assemblymember Shimsky's office has serious concerns regarding continued maintenance of our old gas lines which, along with the hundred-foot rule, is estimated to cost ratepayers more than nine hundred fifty million dollars in 2026 (From Exhibit MOA Shimsky-6) . Many constituents have expressed concern that their utility bills would be lower if more climate friendly options, like electrification, were available to them. We applaud Con Edison's efforts to provide more alternatives for ratepayers to move away from gas at low cost; however, there must be plans in place to begin phasing out capital expenditures for an increasingly obsolescent technology. Assemblymember Shimsky is a co-sponsor of the HEAT Act for these reasons.

Q. Are you concerned that ratepayer increases go to settle lawsuits and other legal actions outside of the maintenance and improvement of gas and electric services?

A. Yes. Recent news reports of a $750,000 settlement of a sex discrimination and sexual harassment action brought against Con Edison raises the larger question of ratepayer responsibility for paying legal judgements, settlements, penalties, fines, interest and other related costs resulting from lawsuits and other legal actions brought against Con Edison (including the cost of defending against and negotiating those claims). Interrogatory Question 1 (From Exhibit MOA Shimsky 2), filed on May 19, 2025, asked for the answers to these questions.

The response from Con Edison was wholly inadequate (From Exhibit MOA Shimsky 2). The Attorney General's settlement decision requires Con Edison to pay, in addition to the $750,000 settlement, an additional $200,000 towards fees and expenses, and additional training of staff to better address gender and racial discrimination in the workplace. Our ratepayers deserve to know how much they are paying to settle not just this single, nearly

one-million-dollar lawsuit, but for the sum total of all actual and alleged incidents and misconduct by Consolidated Edison, their employees and contractors. The company's desperate refusal to quantify the number of cases and dollar amounts spent on each means either that they do not want the ratepayers to know how often they get sued; or that they do not know the answer themselves. Either way, the company's evasiveness should not be tolerated, and the actual answer should be considered as evidence in this rate case. Given the desperate need to stop the escalation of Con Edison rates for the good of the ratepayers, questions do need to be asked – and answered – about the cost-effectiveness of the company's way of doing business.

Q. Are you concerned about the impact of the company's work force decisions on rate increases?

A. Yes, we are concerned that the contracted work by Con Edison contractors is costing ratepayers more due to the use of contract work. In our request for more information, Interrogatory Question 3 (From Exhibit MOA Shimsky 2), filed on May 19, 2025, Con Edison responded that they "do not have such figures and statistics readily available," and the boilerplate added to the response ignores the larger point – that given the need to stop the escalation of Con Edison rates for the good of the ratepayers, questions do need to be asked, and answered, about the cost-effectiveness of the current business operations of this company.

Q. Are there other elements of the rate case you are concerned with?

A. Yes. Other issues that I am concerned about include using the push towards electrification as a scapegoat for skyrocketing distribution charges, and whether Con

Edison's high return on equity is being paid for by rate increases imposed on the ratepayers.

Q. Does this conclude your testimony?

A. Yes.